

I. Request

1. On February 14, 2025, the Secretary of State for the Presidency of the Council of Ministers requested the National Data Protection Commission (CNPD) to issue an opinion by March 3, 2025, regarding the draft decree-law that defines a new model for the allocation of a social mobility subsidy within the scope of air services between the mainland and the autonomous regions of the Azores and Madeira, and between these regions (MIH) (Reg. DL 461/XXIV/2024, hereinafter referred to as Draft DL).
2. The CNPD issues this Opinion within the scope of its powers and responsibilities as an Independent Administrative Authority with the authority to oversee the processing of personal data, conferred by paragraph c) of item 1 of article 57, paragraph b) of item 3 of article 58, and item 4 of article 36, all of Regulation (EU) 2016/679, of April 27, 2016, General Data Protection Regulation (hereinafter GDPR), in conjunction with the provisions of article 3, item 2 of article 4, and paragraph a) of item 1 of article 6, all of Law No. 58/2019, of August 8, which implements the GDPR in the internal legal order (hereinafter LERGPD).
3. This opinion from the CNPD only concerns matters related to the legal protection of personal data and no longer to data concerning legal entities as such.

II. Analysis

i) Legal Protection of Personal Data

4. The legal framework for the protection of personal data is essentially centered on the Constitution of the Portuguese Republic, through its article 35, the Charter of Fundamental Rights of the European Union (hereinafter CDFUE), and the General Data Protection Regulation (GDPR).
5. The legal notion of personal data is established in article 4, 1) of the GDPR, considering that it refers to information relating to an identified or identifiable natural person ("data subject"); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, identification number, location data, electronic identifiers, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;
6. In turn, according to article 8 of the CDFUE, the processing of personal data must be carried out with strict respect for the rights, freedoms, and guarantees of natural persons, in particular the right to the protection of personal data (principle of legality).
7. Regarding the GDPR, it establishes in article 5, item 1 that personal data must be: i) Subject to lawful, fair, and transparent processing (lawfulness, fairness, and transparency); ii) Collected for specified, explicit, and legitimate purposes, and not processed in a manner incompatible with those purposes (purpose limitation); iii) Adequate, relevant, and limited to what is necessary for the purposes for which they are processed (data minimization); iv) Accurate and kept up to date, and all reasonable measures must be taken to ensure that inaccurate data is erased or rectified without delay (data accuracy); v) Kept in a form which permits identification of data subjects only for as long as necessary for the purposes for which the data are processed (storage limitation); vi) Processed in a manner that ensures their security, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, using appropriate technical or organizational measures (integrity and confidentiality).
8. Finally, article 5, item 2 of the GDPR establishes the requirement that the data controller must implement measures that allow them to demonstrate that the processing of personal data is carried out in accordance with the principles set out (accountability).

ii) Legislative Purposes

9. As previously mentioned, the Government decided to create a uniform and unique legal regime, aiming for objectives of simplification, efficiency, and equal treatment of mobility, seeking to clarify and simplify the respective regime.
10. Furthermore, in order to prevent potential misuse by certain economic agents, a control

mechanism is created to mitigate the possibility of charging fares above the prices practiced by air carriers.

11. It was further added that the model meets the concerns raised by the European Commission regarding the functioning of the competitive market. Moreover, the model contained in this decree-law also ensures compliance with the defined principles.

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12. Paragraph

- Law defines

the model for the allocation of the social mobility subsidy (SSM) to passengers residing for at least six months, to equivalent residents, and to students, users of regular air services between the mainland and the autonomous regions of the Azores and Madeira and between these regions, pursuing objectives of

iii) The legal design of this Project

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of mobility (articles 4 and 5); III Operational system, control, and allocation (articles 6 to 14); IV Sanctioning regime (articles 15 to 21); V Final provisions (articles 22 to 25).

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to student passengers, resident passengers, and equivalent resident passengers, who meet, at the time of travel, the eligibility conditions established in this decree.

15. Documentation proving the eligibility of beneficiaries shall be defined by order of the members of the Government responsible for the areas of finance and air and maritime transport, after prior consultation with the governing bodies of the autonomous regions of the Azores and Madeira.

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submit the respective request on the platform mentioned in article 6, along with the required documents.

17. The

carried out through the Single Digital Services Portal procedures provided for in this diploma must utilize secure authentication mechanisms.

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dematerialized process, under the terms of the previous article, through a specific electronic platform, to be created by order of the members of the Government responsible for the areas of finance, air transport, and

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iv) The possible impact on the protection of personal data

19. The CNPD also draws attention to the observance of the provisions of paragraph 4 of article 18 of Law No. 43/2004, of August 18 (Law on the Organization and Functioning of the National Data Protection Commission), according to which Requests for opinions on legal and regulatory provisions in preparation must be sent to the CNPD by the holder of the body with legislative or regulatory power, accompanied by the respective impact study on the protection of

20. Thus, such omission compromises the issuance of a substantiated and sustainable opinion regarding the validity and reliability concerning the probable risks arising from the processing of personal data.

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provisions on the protection of personal data will be established by Order as stated in its article 4, paragraph 3, also passing through article 6, paragraph 1 regarding the dematerialized process and article 7, paragraph 1 through a specific electronic platform, to be created also by order.

22. Thus, the required impact study on the protection of personal data may arise during the preparation of the mentioned order(s).

23. The CNPD has previously expressed its opinion on legislative proposals with the same object, as occurred with Opinion/2024/35, of October 1, 2024.

24. In that opinion, it expressed, among others, the following recommendations: i) technological solutions should be provided, namely access by the Directorate-General of Treasury and Finance to the civil identification database, through Webservices, so that in real time, that entity can verify the identity and address of the beneficiaries of the mobility subsidy, thus avoiding the dissemination of copies of citizens' civil identification cards; ii) the regulation of the processing of personal data carried out by carriers and authorized agencies for the issuance of air tickets for the purpose of requesting reimbursement from the Directorate-General of Treasury and Finance should be foreseen.

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allocation and payment of the SSM, driven by the interested party, through a digital platform, addressing the concerns previously expressed by the CNPD.

2v.

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26. However, nothing more has been regulated regarding the operation and use of the processing of personal data through that platform, reserving this matter for the regulatory discipline of the mentioned order(s). Thus, it will be necessary to renew the other recommendations already announced by the CNPD.

27. On the other hand, in

the processing of data in general, including personal data. For this purpose, the CNPD assumes that these limits will be set by the same order(s).

28. In this regard, we recall that the GDPR makes distinct references for the retention periods to be set for a certain period to ensure the lawfulness and purpose of the processing (e.g., recitals (39), (45), point e) of paragraph 1 of article 5; point b) of paragraph 3 of article 6; point a) of paragraph 2 of article 13; point a) of paragraph 2 of article 14; point d) of paragraph 1 of article 15; point f) of paragraph 2 of article 23; paragraph 2 of article 25).

III. CONCLUSIONS

29. In accordance with the terms and grounds set forth above, the CNPD issues this opinion, recommending:

- a) That the regulatory Order(s) take into account the generality of the recommendations previously mentioned in Opinion/2024/35;
- b) The establishment of a maximum retention period for those personal data when they become unnecessary;
- c) The conduct of an impact assessment on the protection of data.

Lisbon, March 3, 2025

Paula Meira Lourenço (President)